# The Second Monopoly

*The Patent Expired. The Exclusion Didn't —*
*and It Doubled the Cost of American Living.*

How a Constitutional Bargain Was Cancelled — Restoring It Frees Buyers from Surveillance,
Stops Robots Replacing America's Drivers & Operators, and Returns the Joy of Operating Real Machines

A constitutional law litigation strategy and a citizen's playbook — in one book.


## Roleigh Martin

**Foreword by Gord Magill**
Author, *End of the Road: Inside the War on Truckers*


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## The Claim & Remedy

Article I, Section 8, Clause 8 was written in 1787, more than two years before the first patent law. Its words — "securing for limited Times to Authors and Inventors the exclusive Right…" — are therefore a constitutional limit on securing exclusivity by any means, not merely a rule for patent statutes. A secured restriction against competition must expire. For 183 years no second federal power crossed that limit in ordinary commerce; the encroachments the Court struck down came from state law and private contract.

When a patent expires, the engineering design passes to the public — anyone may make, use, and improve it — while the maker's brand and logo stay protected. Yet since 1970, federal energy, emissions, and safety standards have raised a second, potentially permanent exclusion. No rule forbids remanufacture outright. But a faithful remake of a decades-old design must meet standards written for new designs, which it can rarely satisfy without ceasing to be that design. In practice the result is overwhelmingly a ban: the monopoly ends, and the exclusion from low-cost competition outlives it.

That barrier reaches an estimated 58 percent of expired-patent commerce. Five years after a ruling, my book projects, a household choosing remade goods wherever offered recovers roughly a third to half of what it now spends in those categories. One that buys nothing remade still recovers about fifteen percent, because the new tier must price against the remade tier beside it on the lot. The bottom forty percent gain most: they choose the remade item over the new one most often, and the recovery is the largest share of their income.

A general regulatory power cannot accomplish what a specific constitutional limit forbids. The argument rests on two prongs — the Patent Clause and the Takings Clause — and seeks neither deregulation nor weaker standards. It proposes a narrow time-shift: a remake of a fully expired design, certified by an independent engineer, meets the standards of its original platform year, while modern standards remain fully in force for new designs.

Federal law already trusts that time-shift in aviation, where the stakes are highest: a certificated design may keep earlier certification requirements rather than meet every current standard. After the last patent on its original landing gear expired in 1969, Cessna built new 172 Skyhawks for seventeen years to a certification basis written before 1965, while any competitor without Cessna's permission would have been held to newer ones. The difference is who may use it. The FAA extended the time-shift only to the certificate's holder and those it licensed. The Constitution promises the expired engineering design to everyone. The independent engineering certification is this book's proposal for reconciling the two. It honors the bargain and leaves modern standards intact for new designs.

## Proposed Sales Poster (Who is Blocked)

# THE SECOND MONOPOLY

*Honor "limited Times" in the Constitution and legalize remanufacturing for the blocked 58% of commerce*

*"The Original US Constitution — Article I, Section 8, Clause 8"*

*To promote the Progress of Science and useful Arts, by securing for limited Times to Authors and Inventors the exclusive Right to their respective Writings and Discoveries.*

*Buy the book that gives 19 groups of Americans a future they can afford: cars, trucks, tractors, appliances, incandescent light bulbs and heavy equipment remanufactured from proven 20+ year-old designs, once the Court rules, priced a third to half below new and repairable by their owners. What we buy decides how fast that future arrives — and this one is already promised, written into the Constitution in 1787.*




*Every spoke is an American denied the same thing by the same wall. The Constitution's "limited Times" was written in 1787, two and a half years before the first patent law, so it binds every federal rule that touches an invention — not patent law alone. When a patent expires, the design belongs to the public. Since 1970, federal rules have required remakes to meet the newest standards instead of the original ones.*

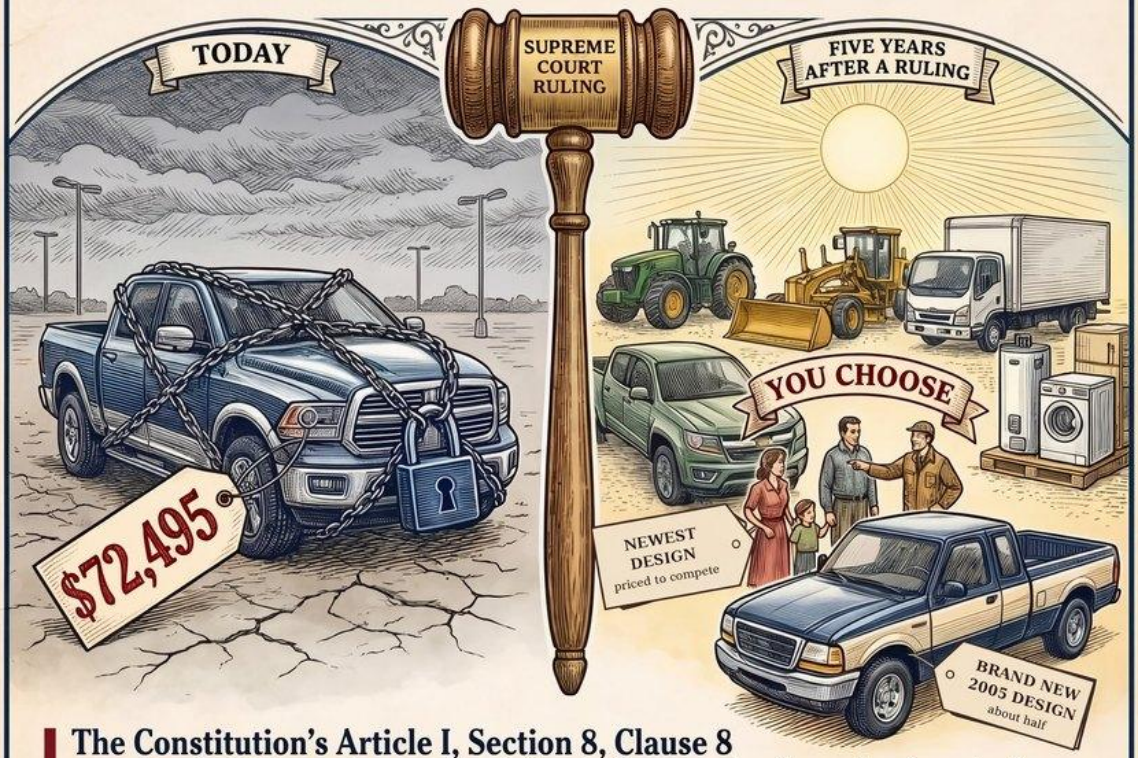
**From THE SECOND MONOPOLY by Roleigh Martin**

marti124.github.io/Patent_BkSignup/

## Proposed Back Cover Art (What is Blocked Today)

# THE PATENT EXPIRED. THE PRICE DIDN'T.

### WHAT ONE SUPREME COURT RULING WOULD CHANGE, AND WHEN




**The Constitution's Article I, Section 8, Clause 8** was written in 1787, more than two years before the first patent law. Its words — "securing for limited Times to Authors and Inventors the exclusive Right..." — are therefore a constitutional limit on securing exclusivity by any means, not merely a rule for patent statutes. A secured restriction against competition must expire.

## THE SAVINGS ARE REAL. THEY COME WITH THREE CONDITIONS.

1. **A Supreme Court ruling** that federal rules cannot keep an expired patent out of the expired-patent commons, where it can be made again by others. From 1787 to 1970 that constitutional promise was honored; no court has yet been asked.
2. **Your choice.** The recovery belongs to the household that buys the brand-new machine built to a proven 20-year-old design, where no patent royalties jack up the price. Never used, never rebuilt: built new.
3. **Time.** About five years, until remanufacturers are common in trucking, farming, road building, and housing. The book projects the fifth year, not the first.

**58%**
of what Americans buy consists of products that cannot be made new from their expired designs.

**$3,385**
per household per year; about $22 trillion since 1970.

**⅓ to ½**
recovered in those categories by households that choose remade goods; about 15% by those that buy none.

**Roleigh Martin** is a retired data engineer, co-inventor of the AI-based U.S. Patent No. 5,359,509, and founder of the 115,000-member Make American Living Affordable (MALA) community on X. **Gord Magill**, author of *End of the Road: Inside the War on Truckers*, wrote the foreword.

Scan the code for the endnotes, 89 Supreme Court cases, and the open-book examination: **marti124.github.io/Patent_BkSignup**

## Proposed Remedy (Blockage Ends)

# *The Desired SCOTUS Ruling Time-Shifts Regulations for Remanufacturing; the Commons Opens*

**THE PRINCIPLE**
The regulatory standards for the original invention should be the same for a patent-expired remake — equal justice (standing) under the Patent Clause. A remake can happen if it need only meet the original standards.

**THE PROBLEM TODAY**
Current standards have ratcheted up and make it impossible to remanufacture the expired-patent item. The remedy time-shifts the rule back to the original's standard — the public's remake need meet only what the original met.

### THE REGULATORY STANDARD

*A grandfather exemption, earned by independent engineering certification, time-shifts the remanufactured design to the standards in force when its original was certified.*

**THE PATENT TERM**
the exclusive right, granted for a limited Time

*the patent still ends on schedule — it was never what blocked the public*

**THE MANUFACTURER'S PROTECTION**
from low-cost remanufactured competition

**this protection ends.**
*Low-cost remanufactured competition is lawful again.*

**THE CERTIFICATION GATE**
A remanufactured patent-expired design passes the gate only if it contains nothing still under patent and meets the federal safety and emissions standards of its certified platform year — confirmed by independent engineering certification.

**THE EXPIRED-PATENT COMMONS**
Now open — the public may make, copy, improve, and remanufacture.

*Held to the standards the original met — only the brand name and logo stay with the original maker.*

*the patent-expired invention*

*the wall still holds for newly designed vehicles — modern rules are untouched*



patent filing — **Patent expires — the “limited Time” ends** — time →

*Simplified: the patent is shown expiring in the present, with remanufacturing desired now. The standard's applicability is time-shifted to the original's certified year — the wall stands, but for the remake it speaks the standards of that year.*

## How to get an Author Review Copy — just reply

No link to the manuscript itself is printed here, and that is deliberate. Send me a line saying you are interested and I will reply with a private link to a PDF version; you can be reading it the same day. If you would rather hold it in print, say so and tell me a little about your work. Printed copies are limited and print-on-demand, so allow about three weeks. What I ask in return is one promise. This is an Author’s Review Copy, not a published book. The link is confidential — please do not post it on social media, a website, or any public medium, and do not re-distribute the PDF. A freely circulating condensed edition could read to a publisher as competing with the book itself. If a colleague should see it, tell me and I will send them their own link. Note, the book’s former title was “The Forgotten Half of the Patent Clause,” however the content is virtually the same.

The book is 586 pages long. Every source carries a live link and cites 89 Supreme Court Cases surveyed and noted. Gord Magill, author of "End of the Road: Inside the War on Truckers," wrote the foreword; owner-operators are the strongest plaintiff category the work identifies among 19 identified categories. Gord Magill has discussed his book and the industry twice on The Tucker Carlson Show (also January 2024), on C-SPAN's Washington Journal, on War Room with Stephen K. Bannon Ep. #4726 and on Fox's Ingraham Angle. He writes at Autonomous Truck(er)s and hosts the podcast Voice of GO(r)D. Gord's podcast episode with me, "The Unconstitutional Highway", is the best hour on the book if hearing it suits you better than reading.

## Five public addresses, if you would rather look before you answer

**https://marti124.github.io/Patent_BkSignup/**

The page asks readers to show a publisher there is demand for *The Second Monopoly*, which is finished but not yet printed. Visitors leave an email and say which formats they would buy, including bulk copies. They can also name which of the book's nineteen plaintiff groups should take the case to federal court. The page offers free reading so people can judge the argument first: Chapter 1, a brief, the poster, Gord Magill's foreword, the open-book exam, the endnotes, one-page handouts, and letter-writing tools. Readers can also leave a public testimonial that may be shown to publishers and agents.

**https://marti124.github.io/Patent_Exam**

Three chapters in full, the Brief, an Invitation to Review, and the open-book examination materials — primary sources, prompts, and scoring sheet — so you can put the question to an AI model and judge the reasoning yourself, as eleven engines did, with all of them agreeing there is a constitutional conflict here. It includes the legal research system OpenCase.

**https://marti124.github.io/Patent_EndNotes**

The endnotes, glossary, and key-terms apparatus — over 253 letter-size pages, every citation with a live link. It includes Appendix A, the SCOTUS Case Master Table: the Supreme Court cases cited, sorted by decision year, each described for what it actually holds. Inclusion is not endorsement — the cases that cut against the argument are in there too, and say so.

**https://marti124.github.io/Patent_Letters**

Letter and packet generators for the Make American Living Affordable campaign, each aimed at a group with a concrete stake: sheriffs, governors and attorneys general, trucking and farm associations, health and lighting advocates, tribal leadership, public-domain scholars.

**https://marti124.github.io/Patent_BkSignup/Handout_The_Second_Monopoly.pdf**

This handout about the book.

## The reception

More than 250 public testimonials on the research are collected at https://marti124.github.io/Patent_Exam/X_Testimonials.pdf, including Robert Malone, MD; Lee Smith; and Rachel Alexander, former Arizona Assistant Attorney General and legal journalist. Practicing and retired attorneys have read drafts and shaped chapters, among them a constitutional-law professor, a former federal energy regulatory attorney, and three IP lawyers.

I have published more than 113 long-form articles (just on X alone), forty of them on the Patent Clause and fifty-nine underlying the book's scope, drawing more than 8 million cumulative impressions, with more than 1.7 million of them patent-specific.

**Roleigh Martin · Northern Kentucky · RoleighMartin@proton.me · x.com/RoleighMartin/articles**

*To talk it over by phone, text first at 952-905-0822. Eastern time. Email is also the place to ask for the link or the book.*